hath beene ſayd. If there be Lord and Tenant by Fealtie and Herriot ſeruice, and the Lord purchaſe part of the land, the Herriot ſeruice is extinct, (and yet it is not annuall, but to be paid at the death of the Tenant) becauſe it is entire and valuable.

Brownlow Caſe lib.6. Talbotts Caſe lib.8.fo.104. 8.Hy.11.

terres et tenemẽts tenus de luy, come il auoit adeuant, pur ceo que tiels ſeruices ne ſont paſſe annuals ſeruices, et ne poyent eſtre apportion, mes leſcuage poit, & ſerra apportion ſolonque lafferante et rate de la terre, &c.

holden of him, as hee had before, becauſe that ſuch ſeruices are no yearely ſeruices, and cannot bee apportioned, but the Eſcuage may and ſhall bee apportioned according to the quantitie and rate of the land, &c.

¶ *Solonque lafferance & rate de la terre, &c.* Here is by this (&c.) implied, That in ſome caſe where it is entire and valuable, and not annuall, it ſhall not (as hath beene ſayd) be extinguiſhed by purchaſe of part, * as Knights ſeruice which is to be performed by the bodie of a man, if the Lord purchaſe part, yet the tenure by Knights ſeruice remaines for the reſidue, Quia pro bono publico, & pro defenſione regni, but the Eſcuage ſhall be apportioned, as here Littleton ſaith, becauſe that is for the benefit of the Lord, and yet it is caſuall, and not annuall. And where our Author ſpeaketh of Seruices, it is implied, that a Herriot cuſtome, though it be entire, valuable, and not annuall, by the purchaſe of part ſhall not be extinct. On the other part, when the tenure is by an entire ſeruice, and the tenant alien part of the tenancie, in what caſes the rent ſhall be multiplied (that is) where the Feoffor and the Alienee ſhall pay the entire rent ſeuerally, (for regularly it holdeth, that quæ in partes diuidi nequeunt, ſolida à ſingulis præſtantur) and where not, you may read at large in my Reports. *

(*) 7 E.3.29. Talbotts Caſe lib.8.fo.104.

(*) Brownlow Caſe lib.6.fo.1.2. Talbotts Caſe lib.8.fo.104

And by this (&c.) is alſo implied, that the apportionment ſhall not be according to the quantitie of the land, but according to the qualitie or value thereof, as by that which hath been ſayd appeareth.

Section 224

5.E.3.Auowrie 200. 21.E.3.38 b 34.Aſſiſe 5. Tit. Apportionment.8.28. 9.Aſſ.22.

¶ NOte heere a diuerſitie, when the grantee of a Rent charge commeth to a part of the land charged by his owne act, and when by the courſe of Law.

30.Aſſ.Pl.19.

¶ *Purchaſe parcel de les Tenements charges en fee.* And ſo it is if the Tenant giueth to the father of the Grantee part of the land in Taile, and this deſcend to the Grantee, the rent ſhall bee apportioned, and ſo by act in Law a Rent charge may bee ſuſpended for one part, and in eſſe for another.

34.Hen.41.b.

And ſo it is, if the father be Grantee of a rent, and the ſon purchaſe part of the land charged, and the father dieth, after whoſe death the rent deſcends to the ſon, the rent ſhal be apportioned, and ſo it is if the Grantee grant the rent to the tenant of the land, and to a ſtranger, the rent is extinct but for a moitie.

¶ Item, ſi home ad vn rẽt charg, & ſon pier purchaſe parcel de les Tenements charges en fee, & moruſt, & cel parcel deſcend a ſon fits, q̃ ad l' rẽt charg, ore cel charge ſ̃t apportion ſolonque le value de la t̃r come ẽ auantdit ó Rent ſeruice, pur ceo que tiel portion de la terre purchaſe per la piere, ne vient al fits per ſõ fait demeſne, mes per diſcent & p courſe del Ley.

Alſo, if a man hath a Rent charge, and his father purchaſe parcell of the Tenements charged in fee, and dieth, and this parcel deſcends to his ſonne, who hath the Rent charge, now this charge ſhall bee apportioned according to the value of the land, as is aforeſaid of Rent ſeruice, becauſe ſuch portion of the land purchaſed by the Father, commeth not to the ſonne by his owne fact, but by diſcent and by courſe of law.

If a man hath iſſue two Daughters and grant a Rent charge out of his land to one of them and dyeth the Rent ſhall be apportioned, and if the Grantee in this caſe enfeoffeth another of her part of the land, yet the moity of the Rent remaineth iſſuing out of her ſiſters part, becauſe the part of the Grantee in the land by the diſcent was diſcharged of the Rent. But in all theſe caſes where the Rent charge is apportioned by act in Law, yet the writ of Annuity lyeth, for if the Grantee ſhould bring a writ of Annuity he muſt ground it vpon the grant by Deede, and then muſt he as it hath beene ſaid bring it for the whole. *9. Aſſ. 22.* *5.R.2.Annuity 21.*

Annua nec debitum Iudex non ſeperat ipſum.

Alſo in reſpect of the realty the Rent is apportioned, but the perſonalty is indiuiſible, and by act in Law ſhall not be deuided. If Execution be ſued of body and lands vpon a ſtatute Merchant or ſtaple, and after the inheritance of part of thoſe lands diſcend to the Conuſee all the Execution is auoyded, for the dutie is perſonall and cannot be deuided by act in Law. *Pl.Com.72.* *35.H.6. tit. Execut. 21.* *15.E.4.5.*

¶ *Ne vient al fitz perſon fait demeſne mes per diſcent & per courſe del ley.* If the father within age purchaſe part of the land charged, and alieneth within age and dyeth, the ſonne recouereth in a writ of Dum fuit infra ætatem, or entreth: In this caſe the act of Law is mixt with the act of the partie, and yet the Rent ſhall be apportioned, for after the recouery or entry the ſonne hath the land by diſcent.

So it is in caſe the ſonne recouereth part of the land vpon an alienation by his father, Dum non fuit compos mentis, the Rent ſhal be apportioned for the cauſe aforeſaid.

A man ſeiſed of lands in fee taketh wife, and maketh a Feoffment in fee, the Feoffee grants a Rent charge of x pound out of the land to the Feoffor and his wife, and to the heires of the huſband, the huſband dieth, the wife recouereth the moity for her Dower by the cuſtome, the Rent charge ſhalbe apportioned, and ſhe may diſtreyne for fiue pound which is the moity of the Rent. In which caſe two notable things are to be obſerued. Firſt, albeit the Dower bee by relation or fiction of Law aboue the Rent, yet when the wife recouereth her Dower, ſhe ſhall not haue her entire Rent out of the reſidue, for a relation or fiction of Law ſhall neuer worke a wrong or charge to a third perſon, but In fictione iuris ſemper eſt Equitas. Second.y, that albeit her owne act doe concurre with the act in Law, yet the Rent ſhalbe apportioned. *5.E.2.Auowry, 206.* *Lib.3.fo.29. in Butler et Bakers caſe.*

Section 225.

¶ Item, ſi ſoit ſñr ⁊ tenant, ⁊ le tenãt tient de ſ̃ Seignior per fealtie ⁊ certaine rent, ⁊ le ſ̃r grant le rent p ſ̃ fait a vn auter, &c. reſeruant a luy le fealty, ⁊ le tenant atturna al grantee de l' rent, ore tiel rent eſt rent ſeck a le grantee, pur ceo que les tenements ne ſont tenus del grantee de le rent, mes ſont tenus del Seignior q̃ reſerue a luy fealtie.

ALſo if there bee Lord and tenant, and the tenant holds of his Lord by fealtie and certaine rent, and the Lord grants the rent by his deed to another reſeruing the fealty to himſelfe, and the tenant atturnes to the grantee of the rent, now this rent is rent ſecke to the grantee, becauſe the tenements are not holden of the grantor of the rent, but are holden of the Lord who reſerued to him the fealtie.

¶ *Et le Seignior grãta le rent, &c.* So it is if the Lord releaſe the Rent to the Tenant ſauing the fealty, the Rent is extinct. But if there be Lord and Tenant by Fealty and Rent, and the Lord by his Deed reciting the tenure releaſe all his right in the land ſauing his ſaid Rent, the Seigniorie remaines and hee ſhall haue the Rent as a rent ſeruice, and the fealtie incident to it, for the ſaid Rent is as much to ſay as the Rent ſeruice whereunto fealty is incident. *12.E.4.11. 9.E.3.1.* *40.E.3.22.b. 13.E.3. tit. Releaſes 36.*

And ſo it is if the Lord hath iſſue two daughters and dieth, and vpon partition the fealty is allotted to the one and the Rent to the other, ſhe ſhall haue the Rent as a Rent ſecke. *17.E.3.72.b.*

If there bee Lord of a Mannor and Tenant by fealtie, Suit of Court and Rent, the Lord grant the fealty ſauing to him the ſuite of Court and Rent, the ſauing is good for the Rent but not for the ſuite to Court, becauſe the Grant- *17.E.3.72.b.*

tæ can kæpe no Court, and there is no tenure of the Grantoz, and therefoze the ſuite of Court is loſt and periſhed in that caſe.

If the Donæ hold of the Donoz by fealty and certaine Rent, and the Donoz grant the ſeruices to another, and the Tenant atturne, ſome haue ſaid the rent ſhall not paſſe becauſe the rent cannot paſſe but as a Rent ſeruice being granted by the name of ſeruices, and the fealty cannot paſſe becauſe as hath bæne ſaid the fealty is incident inſeparable to the reuerſion. But it ſæmeth that the rent ſhall paſſe as a Rent ſecke becauſe at the time of the grant it was a Rent ſeruice in the Grantoz, and therefoze there be wozds ſufficient to paſſe it to the Grantæ, and it is not of neceſſity that it ſhalbe a Rent ſeruice in the hands of the Grantæ.

7.E.3 2.b.Fitz Warrenſ.case

If there be Lozd and Tenant by fealty and certaine rent, and the Lozd by Dæd grant the rent in fæ ſauing the fealty, and grant further by the ſame Dæde that the Grantæ may diſtreine foz the ſame rent in the tenancie, albeit a Diſtreſſe were incident to the rent in the hands of the Grantoz, and although the Tenant attozne to the grant, yet cannot the Grantæ diſtreyne, foz the Diſtreſſe remaines as an incident inſeparable to the Seigniozy, foz then the Tenant ſhould be ſubiect to two ſeuerall diſtreſſes of two ſeuerall men. And ſo it is if the Lozd in that caſe grant the Rent in tayle oz foz life, ſauing the fealty, and further grant that the Grantæ may diſtreine foz it, albeit the reuerſion of the rent be a Rent ſeruice, yet the Donæ oz Grantæ ſhall haue it but as a Rent ſecke, and ſhall not diſtreyne foz it.

7.E.3.2.3.Adiudged.

31.Aſſ.31. 17.Aſſ.10. 32 Aſſ.pl.10. F.N.B.178.D. 22.H.6.3.b. 4.E.2.Aſſ.449 28.H.8.Dier 31.

It is to be obſerued that where a Rent ſeruice is become a Rent ſecke by ſeuerance of the ſame from the Seigniozy, that now the nature of the rent is changed, foz if the Grantæ purchaſe part of the land the whole rent ſhall be extinct. And whereas in an Aſſiſe foz a Rent ſeruice all the Tenants of the land need not to be named, but ſuch as did the diſſeiſin: Yet in Aſſiſe foz the Rent ſecke which ſometimes was a Rent ſeruice, all the Tenants muſt bee named, as in caſe of a Rent charge, albeit he were diſſeiſed but by one ſole Tenant, * but if the Lozd of a Mannoz releaſe the fealty to his Tenant ſauing the rent, oz that a Meſnalty become a rent by ſurpluſage, thoſe that are now Secke (and ſometime were ſeruice) are part of the Mannoz, but a Rent charge cannot be part of a Mannoz.

(*) 31.Aſſ.23. 22.Aſſ.53.

¶ *Attorne, &c.* Of Attoznement ſhall be hereafter ſaid in his proper chapter and place.

Sect. 226.

¶ *Sil le Seignior voet granter per ſon fait le homage, &c.* It is to be obſerued that where the Seigniozy is by homage, fealty and rent, (a) if the Lozd grant away the Homage, the Fealty ſhall paſſe, foz fealty is an incident inſeparable to Homage (b) & cannot by any ſauing in any grãt be ſeperated frõ it, foz homage cannot be ſole oz alone, but the rent (though it be not ſaued) ſhall not paſſe in that caſe becauſe the rent is not incident to homage. And ſo it is if there be Lozd and Tenant by fealty and rent, & the Lozd grant ouer the fealty without any ſaulngs, the rent paſſeth not, but fealty hath an incident inſeperable belonging to it, which by no ſauing can bee ſeparated, and that is a Diſtreſſe, foz as Littleton ſaith here, a ſeruice cannot be ſecke (that is) without ſome

(a) 40.E.3.22.per Curiam.

(b) 44.E.3.19.20. 39.H.6.25. 29.Aſſ.pl.22. 26.Aſſ.p.38.

¶ Mes̃ in le manner eſt lou home tient ſa terre per homage, fealtie, & certaine rent, ſi le Sñr grant la rent, ſauant a luy le homage, tiel rent apres tiel grant eſt rent ſecke. Mes la ou terres ſont tenus per homage, fealty, & certein rent, ſi le Sñr voit granter per s̃ fait le homage de ſon tenãt a vn auter, ſauant a luy le remnant de les ſeruices, & le tenant atturna a luy, ſolonq; le forme del graunt, en ceſt caſe le tenant tiendra

IN the ſame manner, where a man holds his land by homage, fealty and certaine rent, if the Lord grant the rent, ſauing to him the homage, ſuch rent after ſuch grant is rent ſecke. But there where lands are holden by homage, fealty, and certaine rent, if the Lord will grant by his deed the homage of his tenant to another, ſauing to him the remnant of his ſeruices and the tenant atturne to him according to the forme of the grant, in this caſe